

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
ASHLEY ST. ANDREW,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE JAMES
ELLERBE, Shield # 2184, LIEUTENANT JOHN
COSTIN, DETECTIVE JAMEL CARR, and POLICE
OFFICERS JOHN DOES #1-10 (names and number of
whom are unknown at present), and other unidentified
members of the New York City Police Department,

Defendants.
----- X

AMENDED SUMMONS

Index No.: **501754/2014**

The Basis of Venue is:
Location of Incident

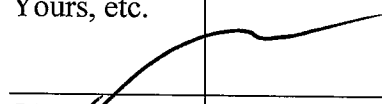
Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 29, 2014

Yours, etc.



JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Detective James Ellerbe, Shield No. 2184, Narcotics Borough Brooklyn North, 1 Police
Plaza, Room 1100, NY, NY 10038
Lieutenant John Costin, 79th Precinct, 263 Tompkins Ave, Brooklyn, NY 11216
Detective Jamel Carr, Narcotics Borough Brooklyn North, 1 Police Plaza, Room 1100,
NY, NY 10038

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AMENDED VERIFIED
COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, ASHLEY ST. ANDREW, by her attorneys, Jacobs & Hazan, LLP, as and for
her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of
defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section
1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United
States Constitution, and the common law and the laws of the State of New York. On March 3,
2011, at approximately 6:00 p.m., plaintiff, Ashley St. Andrew, while lawfully inside of her
friend's apartment, located at 215 Buffalo Avenue, Apartment 1A, Brooklyn, New York, was
subject to an unlawful search, detention, assault, battery, use of excessive force, false arrest, false
imprisonment, and malicious prosecution by the defendant New York City police officers.
Plaintiff was deprived of her constitutional and common law rights when the individual
defendants unlawfully searched, seized, detained, assaulted, battered, falsely arrested, falsely
imprisoned, and maliciously prosecuted plaintiff in violation of the Fourth, Fifth and Fourteenth
Amendments to the United States Constitution.

PARTIES

2. Plaintiff ASHLEY ST. ANDREW is a resident of the State of Vermont.

3. Defendant Detective James Ellerbe, Shield No. 2184, is and was at all times
relevant herein an officer, employee, and agent of the New York City Police Department.

4. Defendant Detective James Ellerbe, Shield No. 2184, is and was at all times relevant herein assigned to Narcotics Borough Brooklyn North.

5. Defendant Detective James Ellerbe, Shield No. 2184 is being sued in his individual and official capacity.

6. Defendant Lieutenant John Costin, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

7. Defendant Lieutenant John Costin is and was at all times relevant herein assigned to Narcotics Borough Brooklyn North at the time of the subject incident.

8. Defendant Lieutenant John Costin is being sued in his individual and official capacity.

9. Defendant Detective Jamel Carr, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

10. Defendant Detective Jamel Carr, is and was assigned at all times relevant herein assigned to Narcotics Borough Brooklyn North.

11. Defendant Detective Jamel Carr is being sued in his individual and official capacity.

12. New York City Police Officers JOHN DOES #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers JOHN DOES #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible.

The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiff in furtherance of her State causes of action filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. On March 3, 2011, at approximately 6:00 p.m., plaintiff was lawfully inside of her friend's apartment, located at 215 Buffalo Avenue, Apartment 1A, Brooklyn, New York.

22. On March 3, 2011, at approximately 6:00 p.m., approximately 4 defendant police officers unlawfully entered plaintiff's friend's apartment without probable cause or legal justification.

23. Upon entering the apartment, the defendant police officers pointed their firearms directly at plaintiff and her friend, ordered them to stand up, told them to "shut the fuck up," grabbed them in a very aggressive manner, and handcuffed plaintiff and her friend in an unreasonably tight manner, without probable cause or legal justification.

24. Plaintiff told the defendant police officers that the handcuffs were too tight and requested repeatedly that they loosen them, but the officers ignored plaintiff's requests.

25. Plaintiff immediately informed the defendant police officers that she did not live in the apartment, and that she was visiting from Vermont.

26. The defendant police officers checked plaintiff's identification and acknowledged that she did not reside in the apartment.

27. The defendant police officers searched plaintiff's person, removing all of the contents of her pockets, without probable cause or legal justification.

28. The defendant police officers unlawfully searched her friend's apartment, without probable cause or legal justification.

29. Notably, at no time did the defendant police officers find any guns, drugs, or illegal contraband in the possession, custody or control of plaintiff.

30. Defendants did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

31. Nevertheless, after illegally searching the apartment for approximately 20 minutes, the defendant police officers informed plaintiff that she was under arrest, without probable cause or any legal justification.

32. The defendant police officers escorted plaintiff out of the apartment building to an NYPD van parked in front of the building, and transported her to the 77th precinct for arrest processing.

33. The defendant police officers falsely communicated to the Kings County District Attorney's Office that plaintiff committed a crime, and provided facts and evidence to the District Attorney's Office that they knew to be false, misleading and/or incomplete.

34. Plaintiff was unlawfully detained in a holding cell at the 77th precinct for several hours, and then she was transported against her will to Kings County Central Booking at approximately 1:00 a.m. on March 4, 2011.

35. For an unknown reason, plaintiff was not admitted to Kings County Central Booking, and upon information and belief plaintiff was transported from Kings County Central Booking to the 97th precinct.

36. Plaintiff was placed in a holding cell at the 97th precinct for approximately 4 hours, until she was transported back to Brooklyn Central Booking at approximately 5:00 a.m. on March 4, 2011.

37. Defendants falsely charged plaintiff with intent to sell a controlled substance, even though a controlled substance was not found in the possession, custody or control of plaintiff.

38. Defendants maliciously initiated a prosecution against plaintiff without probable cause by providing the District Attorney's Office with false, incomplete, and/or misleading information regarding the facts of plaintiff's arrest.

39. On March 5, 2011 at approximately 9:00 a.m., after approximately 39 hours in custody, plaintiff was arraigned, and released on her own recognizance.

40. Thereafter, on March 18, 2011, the case was presented to a grand jury and the grand jury found that the District Attorney lacked probable cause to prosecute plaintiff and found No True Bill.

41. The case was dismissed on March 18, 2011.

42. Some of the police officer defendants that did not physically touch or seize plaintiff observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the search, false arrest or prosecution.

43. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search and seizure of plaintiff.

44. The unlawful search, false arrest, false imprisonment, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain serious physical, psychological and emotional trauma.

45. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally arrest all individuals found within an apartment after searching an apartment, regardless of whether an individual has violated any law or ordinance, and without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated or was about to violate any law or ordinance.

46. As a result of defendant City of New York and the New York City Police Department's policy of arresting every individual located within an apartment after searching the apartment, which arrests were made without probable cause or reasonably articulable suspicion that the individuals arrested had violated any law or ordinance or were about to violate any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely conduct these searches and arrests without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers arresting individuals after the execution of a search warrant without a factual basis supporting a legal reason to do so.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth

Amendment Rights

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, and initiated an unlawful malicious prosecution of plaintiff without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under

the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

49. As a direct and proximate result of such acts, defendants deprived plaintiffs of her rights under the laws of the State of New York and the United States Constitution.

50. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

53. As a direct and proximate result of such acts, defendants deprived plaintiffs of her rights under the laws of the State of New York and the United States Constitution.

54. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Malicious Prosecution

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

57. Defendants commenced and continued a criminal proceeding against plaintiff.

58. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

59. The prosecution and criminal proceedings terminated favorably to plaintiff.

60. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

61. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

62. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The illegal search of plaintiff's person by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

65. Defendants lacked probable cause to search plaintiff's person.

66. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

67. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Failure to Intervene

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

70. Defendants failed to intervene to prevent the unlawful conduct described herein.

71. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligence

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. Defendants owed a duty of care to plaintiff.

75. Defendants breached that duty of care by unlawfully arresting, illegally searching plaintiff, and initiating an unlawful malicious prosecution of plaintiff.

76. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

77. All of the foregoing occurred without any fault or provocation by plaintiff.

78. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

79. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Ashley St. James. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

82. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

83. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

ASSAULT

84. Plaintiff repeats and realleges paragraphs 1 through 83 as if fully set forth herein.

85. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

86. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

87. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

BATTERY

88. Plaintiff repeats and realleges paragraphs 1 through 87 as if fully set forth herein.

89. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without her consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

90. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

91. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

92. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length herein.

93. The use of excessive force by defendants in grabbing and pulling plaintiff, and handcuffing plaintiff excessively tightly was an objectively unreasonable physical seizure of plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

94. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

95. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

96. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

98. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally arresting each and every individual found inside of an apartment subsequent to searching that apartment without a specific, articulable factual basis supporting a probable cause to believe the individual had violated any law or ordinance or were about to violate any law or ordinance, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

99. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of

defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

100. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

101. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

102. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully searched and arrested.

103. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

104. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Ashley St. Andrew demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
 May 29, 2014

By: _____

STUART E. JACOBS
DAVID M. HAZAN
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11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

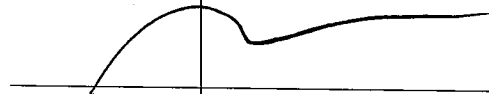
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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 29, 2014


STUART E. JACOBS